

26STCV15066 26STCV15066

County: los-angeles

Division: Civil Law and Motion

Department: 516

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Case Number: 26STCV15066 Hearing Date: September 22, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: September
22, 2026

Case Name: Johnson

v. Los Angeles County Metropolitan Transportation Authority, et al.

Case No.: 26STCV15066

Motion: Motion

to be Relieved as Counsel

Moving Party: Counsel for Plaintiff

Opposing Party: None

Tentative

Ruling: The

Motion to be Relieved as Counsel is denied.

Plaintiff's

counsel –Valentina

A. Mnatsakanyan– seeks to be relieved as counsel of record
for Plaintiff Deandre

Johnson. No opposition was filed.

The motion to be
relieved as counsel is denied.

Discussion

An attorney is entitled to withdraw upon the
consent of the client, or without that consent if approved by the court. (Code
Civ. Proc., § 284; Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904,
915.) In the latter case, counsel must make a motion to be relieved as attorney
of record. The motion must be made using
mandatory forms: Notice of Motion and Motion to be Relieved as Counsel – Civil
(MC-051), Declaration (MC-052), and Proposed Order (MC-053). (Cal. Rules of
Court, rule 3.1362, subd. (a), (b), (e).)

The declaration accompanying the motion to be
relieved as counsel must state “in general terms and without compromising the
confidentiality of the attorney-client relationship why a motion under Code of
Civil Procedure section 284(2) is brought instead of filing a consent under
Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362,
subd. (b).)

The notice to the client must be delivered by
personal service, electronic means, or mail. If it is done via mail under Code
of Civil Procedure section 1013, it must be accompanied by a declaration
confirming the service address to be the most current residence or that it is
the client's last known address, and the attorney has been unable to locate a
more current address. (Cal. Rules of Court, rule 3.1362, subd. (d)(1)(A)-(B).)
If the notice is served on the client by electronic service under Code of Civil
Procedure section 1010.6 and rule 2.251, it must be accompanied by a
declaration stating that the electronic service address is the client's current
electronic service address. (Cal. Rules of Court, rule 3.1362, subd. (d)(2).)

Here,

Attorney Valentina

A. Mnatsakanyan (“Counsel”) has complied with the Rules of Court by filing
forms MC-051, MC-052, and MC-053.

However, Counsel's declaration
does not adequately explain why she should be relieved as Counsel.

Moreover, Counsel

has been unable to confirm Plaintiff's last known address. The Court finds that Counsel's efforts are insufficient. Counsel must comply with Code of Civil Procedure section 1011(b)(3) to properly serve Plaintiff with the motion and supporting papers if the client's address is not known.

Thus, the

Court denies Counsel's motion to be relieved as counsel.